

in the original complaint or soon thereafter and it is unclear why the amendment was not sought earlier. The Wankens' current attorneys acted quickly in seeking to amend the complaint, but there is still unreasonable delay from September 2023 through November 2025.

Unreasonable delay alone is not enough to deny a motion for leave to amend. In order to deny leave to amend, there must also be prejudice. The contribution claim includes a new legal theory, but is based upon the same essential facts as the original complaint. Further, while the trespassing claim is new to the complaint, a similar issue regarding the footpath was already included in Droubi's cross-complaint where she alleges that the Wankens are interfering with her use of the path. Thus, the amendments are likely to result in little, if any, additional discovery, and they do not drastically change the scope of this case. Further, while trial is currently set to begin in April 2026, the Court has granted the Wankens' trial continuance and thus, there will be sufficient time to engage in motion practice related to these new claims. The Court finds that there is no prejudice to Droubi in allowing these amendments.

9. 9:00 AM CASE NUMBER: C23-02436
CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED CROSS-COMPLAINT**
FILED BY: DROUBI, NAHLA
TENTATIVE RULING:

Cross-Complainant Nahla Droubi's motion for leave to file a second amended cross-complaint is **continued to April 8, 2026.**

The Wankens opposed Droubi's motion for leave to amend, arguing that the motion does not comply with California Rules of Court, rule 3.1324(a)(2)-(3) and (b). Droubi's motion does not specify each proposed amendment by listing the page, paragraph, and line number where the additional allegations are located or providing a redline version of the complaint, which provides the same information. (Rule 3.1324(a)(3).) Further, Droubi's motion did not include the required declaration explaining (1) the effect of the proposed amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Rule 3.1324(b).) Compliance with these rules is mandatory.

Droubi shall file and serve a redlined version of the proposed second amended complaint showing all amendments and a declaration compliant with rule 3.1324(b) by March 18, 2025. The Wankens may file and serve an opposition by March 25, 2026. Droubi may file a reply by April 1, 2026.

10. 9:00 AM CASE NUMBER: C23-02445
CASE NAME: DARSHAN SINGH VS. RUDOLPH SANDOVAL
***HEARING ON MOTION IN RE: PROTECTIVE ORDER**
FILED BY: SANDOVAL, RUDOLPH VALENTINO
TENTATIVE RULING:

This hearing was **vacated** at the Case Management Conference on February 26, 2026 due to the

recent bankruptcy filing of Defendant. No appearance is required on March 11, 2026.

11. 9:00 AM CASE NUMBER: C23-02906

CASE NAME: KATELYN SCHAEFER VS. BRYAN DOVE

***HEARING ON MOTION IN RE: SET ASIDE SANCTIONS ORDER AND TO ENFORCE MEDIATED SETTLEMENT AGREEMENT**

FILED BY:

TENTATIVE RULING:

Summary

There are two motions on calendar in the case *Katelyn Schaefer v. Bryan Dove*. This ruling relates to Line 11, which is Defendant Roger Boaz's ("Boaz") Motion to Set Aside Sanctions and to Enforce the Mediated Settlement Agreement filed on November 13, 2025, Line 11. The Court **denies** Defendant Roger Boaz's Motion to Set Aside Sanctions and Enforce Mediated Settlement Agreement.

For Defendant Roger Boaz's Motion for Sanctions Against Opposing Counsel filed on November 13, 2025, see tentative ruling on Line 12, below.

Background

This case presents a complex history of procedural actions taken by Defendant Dove and Cross-Defendant Boaz. In summary, in this litigation, Plaintiff Katelyn Schaefer ("Plaintiff"), who was 16 years old at the time, attended a party on May 26, 2023 at the residence of Defendant Bryan Dove ("Dove") and David Dove in Discovery Bay, California. Plaintiff alleged that at the party, Defendants served alcohol to minors, including to Plaintiff. The complaint further alleged that Defendants provided Katelyn Schaefer with multiple alcoholic drinks, to the point of severe intoxication. As a result, Katelyn Schaefer suffered a fall, hit her head, sustained a cut above her left eyebrow, and lost consciousness. Subsequently as a result of her injuries, Katelyn Schaefer was transported by helicopter ambulance to a trauma center. Ms. Schaefer was treated and was ultimately diagnosed with alcoholic intoxication, concussion with loss of consciousness, laceration of left eyebrow, and acute hypokalemia. Ms. Schaefer's blood alcohol content was .225 g/dl.

Dove filed a cross-complaint against Boaz on March 18, 2024. The record indicates that Boaz evaded service and Dove filed service by publication. On July 21, 2024, Boaz made an appearance through Notice and Acknowledgement of Receipt of Summons and Cross-Complaint, but failed to reply to the cross-complaint. Dove entered a default against Boaz on September 5, 2024. On October 23, 2024, the Court conditionally set aside the default against Boaz. Boaz filed an amended cross-complaint against Dove. The case became at issue after resolution of a series of procedural skirmishes regarding the operative pleadings. In the intervening period, the parties arrived at a settlement agreement with Plaintiff on October 9 2025.

On November 12, 2025, at a hearing on Dove's discovery motion, the Court granted Dove's Motion to Compel Boaz to Respond to Request for Production of Documents, Set One, and for Monetary Sanctions in the amount of \$2,307.50; and also granted Dove's Motion to Compel Boaz to provide Further Responses to Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Admissions, Set One and for Monetary Sanctions in the amount of \$2,425.00.